

# Tyne Improvement Act, 1957

5 & 6 ELIZ. 2 Ch. xxi

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## CHAPTER xxi

An Act to empower the Tyne Improvement Commissioners to execute works and to fill in their Northumberland Dock and for other purposes. [17th July 1957.]

**W**HEREAS by the Tyne Improvement Acts 1850 to 1954 the Tyne Improvement Commissioners (hereinafter called "the Commissioners") were constituted and incorporated as the dock harbour and conservancy authority for the river Tyne and various powers and obligations were conferred and imposed upon them:

And whereas by the Tyne Improvement Act 1852 the Commissioners were authorised to construct a certain dock known as Northumberland Dock and that dock was duly constructed and maintained by the Commissioners:

And whereas by the Tyne Improvement Act 1952 the Commissioners were authorised to abandon and to cease to use the gates of the lock and of the basin at the eastern end of Northumberland Dock and the centre pier between that lock and basin and to remove the said gates and pier:

And whereas under and by virtue of the Tyne Improvement Act 1952 all the obligations of the Commissioners to maintain Northumberland Dock as a dock the water in which was capable of enclosure against the ebb and flow of the tide have ceased and Northumberland Dock is for all purposes part of the river Tyne within the jurisdiction of the Commissioners and of the port of Newcastle upon Tyne:

And whereas it is expedient that the Commissioners should be empowered to extend the river wall of Northumberland Dock and to remove and reconstruct a part thereof and to fill in



Northumberland Dock preserving only a means of access by water to the wharf of Associated Lead Manufacturers Limited in Northumberland Dock from the river Tyne:

And whereas it is expedient that further powers be conferred on the Commissioners as by this Act provided and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas a plan and sections showing the situations lines and levels of the works by this Act authorised and the lands which may be used for the purposes thereof and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the town clerk of the county borough of Tynemouth and are in this Act respectively referred to as the deposited plan sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and  
collective  
titles.

1.—(1) This Act may be cited as the Tyne Improvement Act 1957.

(2) The Tyne Improvement Acts 1850 to 1954 and this Act may be cited together as the Tyne Improvement Acts 1850 to 1957.

Incorporation  
of Acts.

2. The provisions of the Harbours Docks and Piers Clauses Act 1847 which are by section 3 (Incorporation and application of Harbours Docks and Piers Clauses Act 1847) of the Tyne Improvement Act 1934 deemed to be incorporated with each of the Tyne Improvement Acts 1850 to 1934 are (subject to the provisions of the Tyne Improvement Acts 1850 to 1957 and so far as not varied by or inconsistent with those Acts or any of them) hereby incorporated with this Act so far as applicable to the purposes of this Act.

Interpreta-  
tion.

3.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

“ the authorised works ” means the works authorised by section 4 (Filling in of Northumberland Dock) and section 5 (Power to execute works) of this Act;

“ the Commissioners ” means the Tyne Improvement Commissioners;



“ the Minister ” means the Minister of Transport and Civil Aviation;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ the Trinity House ” means the Corporation of Trinity House of Deptford Strond.

(2) This Act is to be read as if the words “ or thereabouts ” were inserted after each distance mentioned in section 5 (Power to execute works) of this Act.

4. Subject to the provisions of this Act the Commissioners may within the limits of deviation shown on the deposited plan fill in Northumberland Dock authorised by the Tyne Improvement Act 1852 and thereupon all powers and obligations conferred or imposed upon the Commissioners with respect to or in connection with the continuance of the said dock shall cease and so much of section XLII (Works to be made according to deposited plans) of the said Act of 1852 as empowers the Commissioners to maintain the said dock or any landing places basins quays wharfs staiths warehouses entrances approaches and other works and conveniences in connection therewith is hereby repealed.

5. Subject to the provisions of this Act the Commissioners may execute in the county borough of Tynemouth in the lines and situations and upon the lands delineated on the deposited plan and described in the deposited book of reference and according to the levels shown on the deposited sections the works hereinafter described (that is to say):—

Work No. 1 A river wall commencing at a point on the north bank of the river Tyne ninety yards east of the southernmost point of the centre pier at the entrance to Northumberland Dock extending for one hundred and forty yards in a westerly direction and terminating at the eastern end of the triangular dock head to Northumberland Dock;

Work No. 2 A river wall commencing at a point on the existing river wall of Northumberland Dock three hundred and seventy-five yards west of the southernmost point of the centre pier at the entrance to Northumberland Dock extending in a north-westerly direction for a distance of fifty yards and thence in a westerly direction and terminating five hundred and fifty yards from the point of commencement;

Work No. 3 A berthing and turning area in Northumberland Dock to the south of and adjoining the property of Associated Lead Manufacturers Limited with a channel



extending southwards from the said berthing and turning area to the existing river wall of Northumberland Dock the whole work to be formed by—

(a) an eastern river wall commencing at the termination of Work No. 2 extending in a northerly direction for a distance of eighty yards thence in an easterly direction for a distance of eighty yards and thence in a northerly direction for a distance of one hundred yards and terminating at the east side of the Hayhole Lead Works of Associated Lead Manufacturers Limited;

(b) a western river wall commencing at a point on the existing river wall of Northumberland Dock ninety yards west of the termination of Work No. 2 extending in a northerly direction for a distance of eighty yards thence in a westerly direction for a distance of ninety yards thence in a northerly direction for a distance of one hundred and fifty yards and terminating at a point on the north bank of Northumberland Dock one hundred yards west of the said lead works;

Work No. 4 The removal of the existing river wall of Northumberland Dock between the commencement of Work No. 2 and the commencement of the western river wall part of Work No. 3.

Work No. 3  
to form part  
of river  
Tyne.

6. The berthing and turning area and channel being Work No. 3 authorised by section 5 (Power to execute works) of this Act shall for all purposes form part of the river Tyne within the jurisdiction of the Commissioners and of the port of Newcastle upon Tyne.

Certain works  
to form part  
of under-  
taking.

7. When the Commissioners under the powers of section 4 (Filling in of Northumberland Dock) of this Act fill in Northumberland Dock (other than the site of Work No. 3 authorised by section 5 (Power to execute works) of this Act) or any part thereof it or such part thereof as shall be so filled in from time to time and any works executed by the Commissioners under the powers of this Act (other than the said Work No. 3) shall while belonging to the Commissioners for the purposes of any dues rates tolls and charges leviable by the Commissioners and for all other purposes whatsoever form part of the undertaking of the Commissioners authorised by the Tyne Improvement Acts 1850 to 1957.

Period for  
completion  
of works.

8. If the works authorised by section 5 (Power to execute works) of this Act are not completed within ten years from the passing of this Act or such extended time as the Minister may on the application of the Commissioners allow then on the expiration



of that period or such extended time (as the case may be) the powers granted by the said section 5 for the execution thereof shall cease except as to so much thereof as is then completed.

9. Subject to the provisions of this Act the Commissioners may make provide and maintain on or in connection with the authorised works within the limits of deviation prescribed by this Act all such signalling equipment approaches roads rails sidings junctions gates sheds buildings tanks yards walls embankments protection works pipes wires mains cables conduits sewers drains culverts sluices shipping places landing places stairs stages gantries cranes dolphins moorings buoys beacons lights and other works buildings machinery and appliances as may be necessary or convenient for the purposes of or in connection with or subsidiary to the authorised works or any of them: Subsidiary works.

Provided that any electric signalling equipment wires mains cables or other works made provided or maintained under the provisions of this section shall be so constructed used and maintained as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

10. The Commissioners may from time to time maintain renew alter or extend temporarily or permanently the works executed by them under the powers of this Act or any part thereof: Alteration and improvement of works.

Provided that nothing in this section shall authorise the Commissioners to deviate laterally or vertically beyond the limits of deviation prescribed by this Act.

11. Subject to the provisions of this Act the Commissioners may construct place and maintain in the river Tyne and the bed banks shores and channels thereof such of the works authorised by this Act to be constructed as the Commissioners may deem expedient or necessary. Works affecting river Tyne.

12. The Commissioners may in executing the authorised works deviate from the lines thereof to the extent of the limits of deviation shown on the deposited plan and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding ten feet upwards or downwards: Power to deviate.

Provided that no deviation either lateral or vertical below high-water mark of ordinary spring tides shall be made without the consent in writing of the Minister.

13.—(1) Subject to the provisions of this Act the works authorised by this Act shall be executed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides only in accordance with plans and sections approved by the Minister and subject to such Works below high-water mark to be subject to approval of Minister.



conditions and restrictions as the Minister may prescribe before such works are begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the Commissioners and the amount of such cost shall be a debt due from the Commissioners to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Survey of  
works by  
Minister.

14. If at any time the Minister deems it expedient for the purpose of this Act to order a survey and examination of any work executed by the Commissioners under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site of or upon which it is proposed to execute any such work the Commissioners shall defray the expenses of the survey and examination and the amount thereof shall be a debt due from the Commissioners to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Lights on  
works during  
execution  
and  
alterations.

15.—(1) The Commissioners shall on or near the works executed by them under the powers of this Act below high-water mark of ordinary spring tides during the whole time of execution alteration or extension of the works exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister may from time to time require or approve.

(2) If the Commissioners fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent  
lights on  
works.

16.—(1) The Commissioners shall after completion of the works executed by them under the powers of this Act at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and shall take such other steps for the prevention of danger to navigation as the Trinity House may from time to time direct.



(2) If the Commissioners fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction they so fail.

17.—(1) Where any work executed by the Commissioners under the powers of this Act situate wholly or partially on under or over the shore or bed of the river Tyne below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Commissioners at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

Abatement of  
work abandoned or  
decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Commissioners they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Commissioners and the amount of such expense shall be a debt due from the Commissioners to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

18. Subsection (2) of section 5 (Power to borrow) of the Tyne Improvement Act 1950 shall be read and have effect as if the reference to "the existing Acts or this Act" included a reference to this Act.

Amendment  
of section 5  
of Tyne  
Improvement  
Act 1950.

19. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.



Saving for  
town and  
country  
planning.

20. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Repeal.

21. Paragraph (b) of subsection (2) of section 4 (As to Northumberland Dock) of the Tyne Improvement Act 1952 is hereby repealed.

Expenses of  
execution and  
costs of Act.

22. All moneys necessary for carrying this Act into effect and payable by the Commissioners and all the costs charges and expenses of and preliminary and incidental to the preparing obtaining and passing of this Act shall be provided and paid by the Commissioners out of the Tyne Consolidated Fund.

*Table of Statutes referred to in this Act*

| Short title                               | Session and chapter                |
|-------------------------------------------|------------------------------------|
| Harbours Docks and Piers Clauses Act 1847 | 10 & 11 Vict. c. 27.               |
| Tyne Improvement Act 1852. ... ..         | 15 & 16 Vict. c. cx.               |
| Telegraph Act 1878 ... ..                 | 41 & 42 Vict. c. 76.               |
| Tyne Improvement Act 1934 ... ..          | 24 & 25 Geo. 5 c. lxxviii.         |
| Town and Country Planning Act 1947        | 10 & 11 Geo. 6 c. 51.              |
| Tyne Improvement Act 1950 ... ..          | 14 Geo. 6 c. xvii.                 |
| Tyne Improvement Act 1952 ... ..          | 15 & 16 Geo. 6 & 1 Eliz. 2 c. vii. |

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